

IN THE HIGH COURT OF THE UNITED REPUBLIC OF TANZANIA

GEITA SUB-REGISTRY

AT GEITA

PC CIVIL APPEAL NO 26177 OF 2025

(From Miscellaneous Civil Application No. 23594 of 2024 in the District Court of Chato, arising from Civil Case No. 01 of 2023 of Bwanga Primary Court, Original Civil Case No. 15 of 2021 of Bwanga Primary Court)

BENEDICTO NICODEMUS.....APPELLANT

VERSUS

MELESIANA CHUBWA NYAMIHILO.....1ST RESPONDENT

EMMANUEL BWIRE.....2ND RESPONDENT

**SHASHINHALE AUCTION MART AND
COURT BROKER.....3RD RESPONDENT**

RULING

Date of last order: 23/12/2025

Date of Ruling: 31/12/2025

MWAKAPEJE, J.:

The appellant in this appeal appeals against the decision of the District Court of Chato in Miscellaneous Civil Application No. 23594 of 2024.

The background is that the appellant instituted a suit against the 2nd respondent in the Bwanga Primary Court in Civil Application No. 15 of 2021, seeking payment of Tshs. 1,645,000, and the claim was decided in his favour. Following the decision and after the attachment order, the 1st respondent filed objection proceedings in Miscellaneous Civil Application No. 1 of 2023 in the same Primary Court, claiming that the

attached property was a matrimonial home. However, the objection failed, prompting her to file a revision in Miscellaneous Civil Application No. 23594 of 2024 in the District Court of Chato.

In exercise of its powers under section 22 of the Magistrates Courts Act, the District Court, after considering the irregularities in the attachment and sale of the house in question, revised it and proceeded to set aside and quash the execution proceedings.

Dissatisfied with the ruling of the District Court, the appellant lodged the present appeal with the following grounds of appeal:

- 1. That the learned magistrate erred in law and fact in entertaining and deciding the matter while the appellant was deceased and without legally joining his legal personal representative.*
- 2. That the learned Magistrate erred in law and fact in entertaining and deciding the matter, while the respondent had the right to appeal.*
- 3. That the matter was filed and heard contrary to law and procedure.*

This appeal was ordered to be argued by way of written submissions. The appellant was represented by Mr. M. S. Mwanaupanga, Advocate, while the 1st respondent appeared in person. Both the appellant and the 1st respondent complied with the court's directions on filing their respective submissions. The 2nd respondent failed to file submissions, and the 3rd Respondent neither entered appearance nor filed submissions, despite several attempts to secure his participation, including service through publication in a widely circulated newspaper.

In support of the appeal, the 1st ground contended that the learned Magistrate erred in law and fact by entertaining and determining the matter when the appellant was deceased, without legally joining his personal representative. He submitted that by the time the District Court of Chato heard and determined Miscellaneous Application No. 23594 of 2024, the appellant was already deceased. He contended that it was erroneous and unlawful for the court to proceed with the matter in the absence of a duly appointed legal personal representative of the deceased party. He argued that proceedings conducted against or by a deceased person, without substitution, are a nullity in law. Reliance was placed on **Dr. Naomi Mpemba and Philipo Erasto Mpemba (as Administrator of the late Erasto Mpemba) and Another v. Halifax Investment (T) Limited and 7 Others**, Civil Appeal No. 319 of 2020 (CAT–DSM).

He argued that the district court record indicated that the affidavit in support of the application was deposed by Consolata Medard, yet there was no court order appointing or joining her as the legal personal representative of the late Benedicto Nicodemus. Consequently, the entire proceedings and the decision arising therefrom were a nullity. He added that proceedings with a matter involving a deceased party without substitution amounted to an illegality sufficient to vitiate the proceedings and warrant the intervention of this Court.

On the second ground, the appellant challenges the learned Magistrate's decision on the basis that the court entertained and determined the matter despite the respondent having an alternative legal remedy by way of appeal. He submitted that, following the dismissal of the 1st respondent's objection proceedings in Case No. 01 of 2023 before the Primary Court of Bwanga, the proper remedy available to her was to institute a fresh suit to establish her interest, and not to invoke revisionary jurisdiction. The impugned application was therefore incompetent and a nullity. To bolster his argument, he relied on the case of **World Oil (Tanzania) Limited vs MRS. Zubeda Ahmed Lakha & Others** (Civil Application No. 110/11 of 2023) [2023] TZCA 17724 (5 October 2023).

On the third ground, the appellant asserted that it flows from and reinforces the first two grounds. In the premises, the appellant prayed that the appeal be allowed, that the proceedings before the trial court be quashed, and that the decision, orders, and rulings thereof be set aside.

In reply, the 1st respondent conceded that the Chato District Court determined Miscellaneous Civil Application No. 23594 of 2024, which originated from Miscellaneous Civil Application No. 1 of 2023 before the Bwanga Primary Court, where the attachment of the property was challenged on the ground that it was a matrimonial home. It was further

conceded that both courts proceeded with and maintained the matter on record against a deceased party.

The 1st respondent nonetheless submitted that the lower courts erred in law and fact by treating the Appellant as a living party, receiving pleadings, recording evidence, and delivering decisions despite his death. It was argued that this failure to appreciate the legal effect of proceeding against a deceased person rendered the entire proceedings a nullity.

It was further submitted that although Consolatha Medard Kambuga had been duly appointed as administratrix of the deceased's estate, the proceedings formally continued against the deceased without proper substitution, thereby vitiating the process. She also contended that the proceedings were marred by material procedural irregularities that went to the root of the case.

The 1st respondent submitted that although she sought redress by way of revision before the District Court, which quashed the Primary Court's orders of attachment and sale, the District Court failed to properly consider the applicable legal framework and factual context, thereby compounding the procedural defects. It was emphasised that the dispute concerned the attachment and sale of a residential house alleged to be a matrimonial home, and that the Primary Court's order permitting such attachment was contrary to the law governing matrimonial property.

Relying on Rule 63(1)(a) and (b) of the Magistrates' Courts (Civil Procedure in Primary Courts) Rules, G.N. No. 55 of 1963, and the case of **Amratlal Damodar Maltaser and Another v. A.H. Jariwalla** [1980] TLR 31, it was argued that residential houses used for dwelling purposes are exempt from attachment, and that failure by the lower courts to determine whether the property was residential constituted a material error of law.

She therefore contended that the lower courts committed fundamental errors and procedural irregularities that vitiated the proceedings, and the 1st respondent prayed for the appeal to be allowed, the impugned decisions to be set aside, and the matter to be ordered to start afresh, without costs.

After considering the record, the grounds of appeal, and the written submissions filed by the appellant and the 1st respondent, this Court, *suo motu*, invited the parties to address it on the competence of the appeal after observing that the appeal had been instituted and prosecuted in the name of the appellant, notwithstanding the undisputed fact that he is deceased.

In response, Mr. Mwanaupanga, learned counsel for the appellant, submitted that although the appellant was deceased, he was of the view that the names of the parties as they appeared in the proceedings before

the lower courts were to be retained in the appeal. He, however, candidly conceded that, given that the appellant was already deceased at the time of filing the appeal, he had no instructions from the appellant to lodge the present appeal. On that basis, he prayed that the appeal be struck out for being incompetent.

I have given anxious consideration to the submissions made. With respect, I agree with the position advanced by learned counsel. It is a fundamental principle of law that proceedings cannot be instituted or continued by or against a deceased person without proper substitution or joinder of a duly appointed legal personal representative. An appeal filed in the name of a deceased person is incurably defective and incompetent, as a deceased person lacks the legal capacity to sue or be sued. The case of **Juma A. Zomboko and 42 Others vs Avic Coastal and Development Co. Ltd & 4 Others** (Civil Application No. 576 of 2017) [2021] TZCA 3541 (16 November 2021) Tanzlii cited the case of **Babubhai Dhanji v. Zainab Mrekwe** [1964] 1 EA 24, where it was held that:

"A suit instituted in the name of a dead person is a nullity."

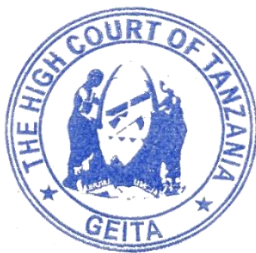
In the present case, the appeal was filed and maintained in the name of the deceased appellant, and no steps were taken to substitute him with his legal personal representative or administrator of his estate.

The mere fact that the deceased was represented by counsel does not cure the defect, as there is no evidence that counsel was instructed to file the appeal. Neither does such representation confer jurisdiction upon this Court to entertain an appeal that is legally non-existent. To hold otherwise would be to perpetuate the very irregularities that characterised the proceedings before the courts below.

Accordingly, I am satisfied that the appeal is improperly before this Court and is incompetent. The same is hereby struck out. Since the issue of competence was raised by the Court on its own motion, I make no order as to costs.

It is so ordered.

DATED at **GEITA** this 31st day of December 2025.



G.V. MWAKAPEJE
JUDGE